2026 Proposed Constitutional Amendments

Election Date: November 3, 2026

Proposed Amendment No. 1	Do you support an amendment to allow the surviving spouse of a deceased veteran with a service-connected disability, who receives the additional property tax exemption, to make a one-time transfer of the additional property tax exemption to a subsequent qualifying property?

2026 Regular Session, ACT 39 (SB 180)

Existing constitution provides that, in addition to the homestead exemption which applies to the first $7,500 of the assessed valuation of property, property receiving the homestead exemption which is owned and occupied by a veteran with a service-connected disability rating by the U.S. Dept. of Veterans Affairs shall be exempt from ad valorem tax as follows:

(1) For a veteran with a disability rating of 50% or more but less than 70%, the next $2,500 of the assessed valuation of the property shall be exempt. Provides that if property eligible for the exemption has an assessed value in excess of $10,000, ad valorem property taxes shall apply to the assessment in excess of $10,000.

(2) For a veteran with a disability rating of 70% or more but less than 100%, the next $4,500 of the assessed valuation of the property shall be exempt. Provides that if property eligible for the exemption has an assessed value in excess of $12,000, ad valorem property taxes shall apply to the assessment in excess of $12,000.

(3) For a veteran with a disability rating of 100% unemployability or totally disabled, the total assessed valuation of the property shall be exempt.

Proposed constitutional amendment retains existing constitution.

Existing constitution provides that the surviving spouse of a deceased disabled veteran with a service-connected disability rating by the U.S. Dept. of Veterans Affairs shall be eligible for this exemption if the surviving spouse occupies and remains the owner of the property, whether or not the exemption was in effect on the property prior to the death of the veteran.

Proposed constitutional amendment removes the requirement that the surviving spouse occupy and remain the owner of the property and otherwise retains existing constitution.

Proposed constitutional amendment provides that once the surviving spouse of a deceased disabled veteran with a service-connected disability is eligible for and has taken the exemption, if the surviving spouse then acquires a different property which qualifies for the homestead exemption, the surviving spouse shall be entitled to a one-time transfer of the exemption on that subsequent homestead. The exemption shall be limited in value to the amount of the exemption claimed on the prior homestead in the last year for which the exemption was claimed.

Proposed constitutional amendment permits the assessor to require the submission of certain information concerning the amount of the exemption on the prior homestead for purposes of determining the extent of the exemption available for the subsequent homestead.

Proposed constitutional amendment is applicable to taxable years beginning on or after January 1, 2027.

Effective January 1, 2027.

Proposed Amendment No. 1 ***continued***	Specifies submission of the amendment to the voters at the statewide election to be held on November 3, 2026. (Amends Const. Art. VII, §21(K)(1))
Proposed Amendment No. 2	**Do you support an amendment to allow a local taxing authority to continue to levy a lower millage rate without losing its ability to adjust to the maximum authorized millage rate from a prior year's reassessment?**
	2026 Regular Session, ACT 273 (HB 521) Existing constitution requires an automatic adjustment in ad valorem (property tax) millage rates in response to changes in the tax base resulting from a statewide reassessment every four years or changes in the homestead exemption, with adjustments made to ensure tax revenue collected in the year after reappraisal is equal to the amount of tax revenue collected in the year prior to reappraisal. Existing constitution authorizes an increase in a millage rate up to the maximum authorized rate from the prior year's reassessment by a 2/3 vote of the total membership of the taxing authority without further voter approval. Present constitution provides that, if a taxing authority does not increase its millage rate up to the maximum authorized rate from the prior year's reassessment before the next reassessment, the taxing authority permanently loses the ability to increase its millage rate to the maximum authorized rate from the prior year's reassessment in the future. Proposed constitutional amendment allows a taxing authority to continue to levy a lower millage rate without subsequently losing its ability to adjust to the maximum authorized millage rate from a prior year's reassessment until the authorized millage rate expires. Effective January 1, 2027, and applicable to all tax years beginning on or after January 1, 2027. Provides for submission of the proposed amendment to the voters at the statewide election to be held November 3, 2026. (Amends Const. Art. VII, §23(C))
Proposed Amendment No. 3	**Do you support an amendment to prohibit a defendant from being released on any post-conviction bail if the defendant is convicted of an aggravated offense against a minor child?**
	2026 Regular Session, ACT 271 (HB 51) Existing constitution provides for the right to bail. New constitutional amendment provides that a person convicted of an aggravated offense, as defined by existing law (R.S. 15:541), against a minor is not eligible for any post-conviction bail. Provides for submission of the proposed amendment to the voters at the statewide election to be held November 3, 2026. (Adds Const. Art. I, §18(C))